

STATE OF NEW YORK

5213--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. BUTTENSCHON, SANTABARBARA, SAYEGH, ANDERSON, O'PHARROW, CASHMAN -- read once and referred to the Committee on Mental Health -- recommitted to the Committee on Mental Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to establishing a developmental disability, mental health, and behavioral condition community stakeholder committee; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Developmental disability, mental health, and behavioral
2 condition community stakeholder committee. 1. The commissioner of mental
3 health, in consultation with the commissioner of the office for people
4 with developmental disabilities, the commissioner of the office of chil-
5 dren and family services, and the commissioner of education, shall
6 establish a community stakeholder committee to examine appropriate and
7 effective evidence-based screening methods, and appropriate inter-
8 ventions for children identified with a developmental disability, a
9 mental health or behavioral condition, and educational supports for
10 students in kindergarten through grade five. The community stakeholder
11 committee shall consist of at least ten members. The following four
12 members shall serve as co-chairs of the community stakeholder committee:
13 (a) the commissioner of mental health or their designee; (b) the commis-
14 sioner for people with developmental disabilities or their designee; (c)
15 the commissioner of children and family services or their designee; and
16 (d) the commissioner of education or their designee. The remaining
17 members shall be appointed in cooperation by the temporary president of
18 the senate, the speaker of the assembly, and in consultation with the
19 minority leaders of the senate and assembly, in such a manner as to
20 ensure that all regions of the state are represented, and shall include:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) at least two members who specialize in identifying, evaluating, and
2 diagnosing individuals with a developmental disability, or a mental
3 health or behavioral condition; (b) at least one member who specializes
4 in providing education to individuals with a developmental disability, a
5 mental health or behavioral condition; (c) at least one member who is a
6 parent of a student with a developmental disability, a mental health or
7 behavioral condition; and (d) at least one member who has been identi-
8 fied as an individual with a developmental disability, a mental health
9 or a behavioral condition. All members shall have expertise in fields or
10 disciplines related to the identification of students diagnosed with a
11 developmental disability, a mental health or behavioral condition.

12 2. The community stakeholder committee shall conduct at least two
13 public hearings for the purpose of obtaining information from stakehold-
14 ers and other interested parties, including but not limited to social
15 workers licensed under article 154 of the education law, mental health
16 practitioners licensed under article 163 of the education law, behavior
17 analysts licensed under article 167 of the education law, and teachers,
18 school administrators, and parents.

19 3. The community stakeholder committee shall prepare and submit a
20 report of its findings and recommendations to the governor, temporary
21 president of the senate, speaker of the assembly, the minority leader of
22 the assembly, and the minority leader of the senate eighteen months
23 after the effective date of this act.

24 § 2. This act shall take effect January 1, 2027 and shall expire and
25 be deemed repealed August 1, 2028.